

24STCV15768 24STCV15768

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 28, 2026

CASE NUMBER

24STCV15768

MOTION

Motion to Compel Further Discovery Responses

MOVING PARTY

Plaintiff Michael

Hope

OPPOSING PARTY

Warren Lotus, LLC

MOTION

Plaintiff Michael

Hope ("Plaintiff") moves to compel further responses from Defendant Warren

Lotas, LLC ("Defendant") to Requests for Production of Documents, set one ("RPD"). Defendant opposes the motion.

ANALYSIS

If the propounding

party deems responses to requests for production of documents unsatisfactory,

the propounding party may move to compel further responses. (Code Civ. Proc., §

2031.310.)

In response to the

RPD at issue, Defendant provided responses after objecting to the RPD

individually and as a set, "leaving nothing to address in a motion to compel." (American Federation of State, County &

Municipal Employees v. Metropolitan Water Dist. (2005) 126 Cal.App.4th 247,

269.) Because Defendant responded to the

RPD, the Court cannot compel a further response on the basis Defendant also

asserted objections. However, if

Defendant withheld any responsive documents based on any applicable privilege,

Plaintiff is entitled to a privilege log.

The Court, therefore, grants the motion to compel further responses to

the RPD as to Defendant providing a privilege log. (Hernandez v. Superior Court (2003) 112

Cal.App.4th 285, 291, fn. 6.)

Plaintiff also

contends Defendant's responses to the RPD are incomplete. Ordinarily, Plaintiff cannot move to compel

Defendant to further respond on the basis Plaintiff believes Defendant's

responses are such. (See, e.g., Holguin

v. Superior Court (1972) 22 Cal.App.3d 812, 820 [Court of Appeal notes with

respect to responses to requests for admissions, a trial court cannot force a

party to respond in a particular way if the party is willing to risk perjury

prosecution or financial sanctions].) Then,

Plaintiff's remedy is to offer Defendant's allegedly incomplete responses as

admissions or as prior inconsistent statements to impeach Defendant at trial,

if Defendant seeks to introduce evidence it did not disclose in discovery. (See

Evid. Code, §§ 1220; 1235.)

In the instant

case, however, Plaintiff has shown, to the extent Defendant has not produced certain

financial information such as income statements, balance sheets, tax returns, bank statements, general ledgers, and brokerage statements, the Court deems these are responsive documents to the RPD at issue, and they are reasonably calculated to lead to the discovery of admissible evidence in the instant action based on Plaintiff's claim of sustaining damages resulting from his purported 5% ownership interest in Defendant. Any privacy concerns Defendant may have can be addressed by way of adherence to the Stipulated Protective Order into which the parties entered on October 28, 2025. For any claim of privilege, as noted above, Defendant must provide a privilege log which identifies each document being withheld based on the asserted privilege, and the log must have "sufficient factual information for [Plaintiff] to evaluate the merits" of such privilege claims. (Code Civ. Proc., § 2031.140, subd. (c)(1).)

In addition, if Plaintiff contends Defendant has not produced those documents it agreed to produce, Plaintiff must file a motion to compel Defendant's compliance with its agreement to comply with the RPD under Code of Civil Procedure section 2031. (See Code Civ. Proc., § 2031.320, subd. (a) [if party responds to a demand for production of documents and thereafter fails to produce documents in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance].) For example, Defendant indicated in response to RPD No. 36, it would "produce the responsive, non-privileged documents in its custody, control or possession in the form of profit and loss statements and balance sheets from 2019 through 2023."

(See e.g., Declaration of David H. Boren, Exhibit B, pp. 24-25.) Defendant provides a substantially similar response to RPD Nos. 34 and 37. Thus, if such documents have not been produced to date, Plaintiff's recourse is to move to compel Defendant's compliance with its stated commitment.

CONCLUSION AND ORDER

To the extent Defendant has not yet produced responsive documents, as discussed above, Defendant is to do so within 30 days of notice of this order, unless the parties agree to a different time frame.

If Defendant claims privileges regarding such production, defendant must also provide a privilege log with sufficient detail to allow Plaintiff to evaluate whether such assertions of privilege are meritorious.

Plaintiff is

ordered to give notice of the Court's ruling and to file proof of service of same.